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No. 25-0792 §

IN THE SUPREME COURT OF TEXAS

~~IN THE SUPREME COURT OF TEXAS~~

State of Texas, Petitioner

v.

State of Texas, Petitioner

F.M.V., a Juvenile, Respondent

On Review from Case No. 08-24-00077-CV in the Eighth Court of Appeals, El Paso Texas; and on Appeal from the 65th District Court, El Paso County, Texas; Cause No. 2100093

F.M.V., a Juvenile, Respondent

PETITION FOR REVIEW

On Review from Case No. 08-24-00077-CV in the Eighth Court of Appeals, El Paso, Texas; and on Appeal from the 65th District Court, El Paso County, Texas; Cause No. 2100093

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Trial Court Judge: Hon. Yahara Lisa Gutierrez, Judge, 65th District Court, 500 E. San Antonio, Suite 1105, El Paso, TX 79901.

Trial Court Judge

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RECORD REFERENCES

Record references: Reporter's Record = R.R. + Page + Line No. ("ln"); Clerk's Record = C.R. + Page.

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Clerk's Record = C.R. + Page

TABLE OF CONTENTS

IDENTITIES OF PARTIES AND COUNSEL ii

INDEX OF AUTHORITIES iv

STATEMENT OF THE CASE 1

STATEMENT OF JURISDICTION 2

ISSUE PRESENTED 2

STATEMENT OF FACTS 3

A. The Shooting 3

B. F.M.V.'s Detention and Magistration. 4

C. Trial and Disposition. 5

INTRODUCTION AND SUMMARY OF THE ARGUMENT 8

ARGUMENT 10

A. The Magistrate Provided a Neutral Examination of F.M.V.'s Statement Outside the Physical Presence of Law Enforcement. 8

B. Constructing "presence" under § 51.095 of the Family Code to mean "line of sight", rather than "physical presence" creates new law that should be reviewed. 9

1. As to criminal proceedings, most Texas courts interpret "presence" to encompass both physical and sensory proximity. 10

CONCLUSION AND PRAYER 10

CERTIFICATE OF SERVICE 11

CERTIFICATE OF COMPLIANCE 11

APPENDIX 12

IDENTITIES OF PARTIES AND COUNSEL iii

INDEX OF AUTHORITIES iv

STATEMENT OF THE CASE 1

STATEMENT OF JURISDICTION 2

ISSUE PRESENTED 2

STATEMENT OF FACTS 3

A. The Shooting 3

B. F.M.V.'s Detention and Magistration. 4

C. Trial and Disposition. 5

INTRODUCTION AND SUMMARY OF THE ARGUMENT 8

ARGUMENT 10

A. The Magistrate Provided a Neutral Examination of F.M.V.'s Statement Outside the Physical Presence of Law Enforcement. 13

B. Constructing "presence" under § 51.095 of the Family Code to mean "line of sight", rather than "physical presence" creates new law that should be reviewed. 16

1. As to criminal proceedings, most Texas courts interpret "presence" to encompass both physical and sensory proximity. 17

2. In some contexts, "presence" means constructive presence-- being "in view" or "at hand", rather than requiring actual eye or ear witness of the events. 18

3. The Court of Appeal's definition is unworkable when applied to the other three uses of "presence." 19

4. The definition of "presence" in Tex. Fam. Code § 51.095 is important to the jurisprudence of the state of Texas. 22

CONCLUSION AND PRAYER 23

CERTIFICATE OF SERVICE 24

CERTIFICATE OF COMPLIANCE 24

APPENDIX 25

INDEX OF AUTHORITIES

INDEX OF AUTHORITIES

Cases

Cases

In re F.M.V., No. 08-24-00077-CV, 2025 WL 2146682 (Tex. App.—El Paso July 29, 2025) 1, 2, 6, 7, 8, 10
Istrian v. State, 780 S.W.2d 447 (Tex. App.—Dallas 1989) 18
In re F.M.V., No. 08-24-00077-CV, 2025 WL 2146682 (Tex. App.—El Paso July 29, 2025) 1, 2, 6, 7, 8, 10
..... 10, 11, 13, 17, 19
Lira v. State, 666 S.W.3d 498 (Tex. Crim. App. 2023) 20
Pittman v. State, 688 S.W.3d 433 Tex. App.—San Antonio 2023) 2, 7, 8, 9, 10
Ramos v. State, 961 S.W.2d 637 (Tex. App.—San Antonio 1998, no pet.). 23
Shipp v. State, 331 S.W.3d (Tex. Crim. App. 2011) 19
Tates v. State, No. PD-0486-23, 2025 WL 1812826 (Tex. Crim. App.—July 2, 2025) 17, 18
Thomas v. State, 864 S.W.2d 193 (Tex. App.—Texarkana 1993) 17, 18

Statutes

Statutes

Tex. Fam. Code § 51.095 ..... 2, 7, 8, 9, 10
Tex. Gov't Code § 22.001 2

Rules

Rules

Tex. R. App. P. 56.1 2

Statutes

Tex. Code Crim. Proc. art. 14.01 18
Tex. Fam. Code § 51.095 ..... 12, 13, 16, 19, 20, 21, 22
Tex. Fam. Code § 52.025 14
Tex. Gov't Code §22.001 6

Rules

Tex. R. App. P. 56.1 6

TO THE SUPREME COURT OF TEXAS:

STATEMENT OF THE CASE

Nature of the Case: This is a civil juvenile prosecution under the Texas Family Code.

Trial Court Judge: Yahara Lisa Gutierrez

Trial Court: 65th District Court, El Paso County, Texas

Course of the Proceedings: The State charged the juvenile via a determinate sentence petition with five counts of deadly conduct, discharge of a firearm, in civil proceedings in the 65th District Court, a designated juvenile court. (C.R. 44-46). A jury adjudicated him delinquent on all five counts on March 22, 2024. (C.R. 229-233). The trial court conducted a disposition hearing and sentenced him to three years in the Texas Juvenile Justice Department. (C.R. 244-246). This appeal followed.

Trial Court Disposition: The trial court adjudicated the juvenile delinquent and ordered him to serve three years in the Texas Department of Juvenile Justice. (C.R. 244-246).

Parties in the Court of Appeals: F.M.V. (the juvenile) and the State of Texas.

Appellate Court District: 8th Appellate District.

Appellate Justices: Soto, Palafox, Salas-Mendoza

Citation of the Appellate Opinion: *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL 2146682 (Tex. App.—El Paso 2025, pet. filed).

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Appellate Court Disposition: The Eighth Court of Appeals reversed and remanded the case for further proceedings. *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL

Appellate Court Disposition: The Eighth Court of Appeals reversed and remanded the case for further proceedings. *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL 2146682 (Tex. App.—El Paso 2025, pet. filed). No hearings or motions are pending before the Court of Appeals. The State now petitions the Supreme Court to review the opinion and judgment of the Court of Appeals.

STATEMENT OF JURISDICTION

A. Generally:

i. This Court has jurisdiction over this appeal because the issue raised is important to the jurisprudence of the state, and it has already been considered by a court of appeals. Tex. Gov't Code §22.001(a), (b).

B. Reasons to Grant Review: The decision merits review because:

i. The appeal raises an issue of first impression as to the proper interpretation of Tex Fam. Code § 51.095.

ii. In its construction of the statute, "[t]he court of appeals appears to have committed an error of law of such importance to the state's jurisprudence that it should be corrected." Tex. R. App. P. 56.1(5); and,

iii. The Eighth Court of Appeals has decided an important question of state law that should be resolved by this Court. *See id.* 56.1(6).

ISSUE PRESENTED

In Texas, a juvenile statement must be signed in the "presence of a magistrate," with "no law enforcement officer…present" for the juvenile's statement to be admissible in evidence. A juvenile signed an incriminating statement in front of a magistrate. Officers were within the magistrate's line of sight but unable to hear the conversation, and the juvenile was not exposed to any words or actions on the part of the police. Did the trial court commit reversible error by admitting the juvenile's signed statement into evidence?

STATEMENT OF FACTS

A. The Shooting

On November 22, 2022, Officers were dispatched to a call in Canutillo, Texas. (R.R. Vol. II at 160:1). Maria De Los Angeles Ramirez and Leonardo Ramirez Torres were present when more than thirty bullets struck and entered their home. (R.R. Vol. III at 54:24-55:6). Torres was the only one injured by the shots fired; a piece of metal entered his eye. (R.R. Vol. III at 58:25). When he arrived at the scene, El Paso County Sheriff's Detective Bastardo observed several gunshot holes in the residence and shell casings on the street. (R.R. Vol. III at 78:16-78:18).

Through the course of their investigation, officers learned that an altercation between F.M.V.'s friends and Leonardo Ramirez, Maria De Los Angeles Ramirez's son, occurred at the outlet mall prior to the shooting; threats were made to Leonardo Ramirez. (R.R. Vol. III. at 78:7-78:12). El Paso County Sheriff's Detective Bastardo located a surveillance video showing a white Dodge Charger which was the suspected vehicle involved in the shooting. (R.R. Vol. III. at 81:3-81:5; State's Exhibit 29). Andre Gilmer, an adult co-actor, was identified to be the driver of the white Charger; Detectives received several names of individuals involved, including F.M.V. (R.R Vol. III. at 84:15).

A search warrant led to the weapons used; the co-actor was arrested; and a ballistic analysis was conducted. The weapons collected from the co-actor matched

the casings found at the scene. (R.R. Vol. III at 89:22-89:25). A few days later, Detective Bastardo met with F.M.V.'s mother, Itza Varela. Varela had reported him as a runaway, and she wanted to provide information to Detective Bastardo regarding the shooting. (R.R. Vol. III at 37:19-37:22). Detectives also spoke with the F.M.V.'s girlfriend, Alexis Sigala, and she stated he sent her a video of the shooting on the day of the offense and he admitted to her that he was involved in the shooting. (R.R. Vol. III at 90:23-90:25).

B. F.M.V.'s Detention and Magistration.

On December 1, 2022, F.M.V. was detained and taken to the Northwest Patrol station where he received his Miranda warnings and asked if he wanted to provide a statement. (R.R. Vol. III at 104:13-105:9). F.M.V. was then taken to the jail magistrate.

The jail magistrate, Judge Sara Priddy, administered his Miranda warnings (R.R. Vol. III at 107:5-107:6). Detective Bastardo and his partner were positioned at a distance from both F.M.V. and the magistrate, having no direct involvement in the process of reading or explanation of F.M.V.'s rights. (R.R. Vol. I at 9:21-25). Judge Priddy read his rights, one by one, and asked him questions to ensure he understood. (R.R. Vol. III at 107:5-107:6). Detective Bastardo and his partner were positioned at a distance from both F.M.V. and the magistrate, having no direct involvement in the process of reading or explanation of F.M.V.'s rights. (R.R. Vol. I at 9:21-25). Judge

F.M.V. provided a statement admitting his involvement in the shooting, and the statement was typed and printed. (RR. Vol. III at 110:22 – 113:1).

After the statement was complete, F.M.V. was taken back to Magistrate Priddy, where she reviewed the statement with him. (R.R. Vol. III at 105:7-105:9). While reviewing the statement with the magistrate, F.M.V. made a correction to the statement; he stated to the magistrate that one line was not his statement, and that line was crossed out and initialed by the magistrate and F.M.V. (R.R. Vol. III at 108:6-108:10). Magistrate Priddy and F.M.V. subsequently signed the statement, and he was released back to Detective Bastardo's custody.

C. Trial and Disposition:

F.M.V. was referred to the Juvenile Probation Department on five counts of Deadly Conduct Discharge Firearm. (R.R. Vol. III at 109:1-109:2). F.M.V. was tried by a jury in the 65th District Court on March 19, 2024; the jury found F.M.V. delinquent on all five counts of Deadly Conduct Discharge Firearm. (C.R. at 234). F.M.V. elected for the trial judge to decide the disposition; on March 22, 2024, the court sentenced him to three years commitment to the Texas Juvenile Justice Department. (C.R. at 244).

Priddy read his rights, one by one, and asked him questions to ensure he understood. (R.R. Vol. I at 12:13-13:9).

Detective Bastardo took F.M.V. to the Juvenile Probation Department to obtain his statement. (R.R. Vol. III at 104:15). At the Juvenile Probation Department, F.M.V. provided a statement admitting his involvement in the shooting, and the statement was typed and printed. (R.R. Vol. III at 110:22-113:1).

After the statement was complete, F.M.V. was taken back to Magistrate Priddy, where she reviewed the statement with him. (R.R. Vol. III at 105:7-105:9). While reviewing the statement with the magistrate, F.M.V. made a correction to the statement; he stated to the magistrate that one line was not his statement, and that line was crossed out and initialed by the magistrate and F.M.V. (R.R. Vol. III at 108:6-108:10). Magistrate Priddy and F.M.V. subsequently signed the statement, and he was released back to Detective Bastardo's custody.

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INTRODUCTION AND SUMMARY OF THE ARGUMENT

The dispute in this juvenile matter is legal not factual.

On a November evening in 2022, gunmen fired more than thirty bullets into the home of Maria de los Angeles Ramirez and Leonardo Ramirez Torres.[1] Fourteen-year-old juvenile FMV later confessed that his friend Andre—armed with an AR rifle—and his accomplice Jonathan—armed with a .45 caliber handgun—picked F.M.V. up in a white, Dodge Charger. FMV guided them to the victims' home.[2] FMV "pointed out" the house, and Andre and Jonathan got out of the car and began shooting.[3] Those substantive facts have not been disputed.

The procedural facts aren't in dispute either. After an investigation, FMV was detained and Mirandized.[4] He was then taken to the jail magistrate where he was again read his Miranda warnings one-by-one.[5] Investigating officers were positioned at a distance from both the Appellant and the magistrate, having no direct involvement in the process of reading or explaining the Appellant's rights.[6] The detective then took FMV to the Juvenile Probation Department to obtain his

[1] R.R. Vol. II at 160:1 and R.R. Vol. III at 54:24-55:6.

[2] *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL 2146682, at *6 (Tex. App.—El Paso 2025, pet. filed).

[3] *Id.*

[4] R.R. Vol. III at 104.23-105:9.

[5] R.R. Vol. III at 107:5-107:6.

[6] R.R. Vol. I at 9:21-25.

Probation Department to obtain his statement.[7] After the statement was complete, FMV was taken back to the jail magistrate to sign the statement in the magistrate's presence.[8]

At trial, FMV challenged the manner in which section 51.095 of the Family Code was applied to his confession. Specifically, he noted that the magistrate supervised the signing of his confession with armed law enforcement officers about 30 feet away. FMV claimed that this violated subsection (a)(1)(B)(i), which prohibits law enforcement officers from being "present" while he was in the "presence" of the magistrate during signing. The trial court conducted a full evidentiary hearing. It then concluded that this Family Code provision was not violated when he signed—after he asked to correct it—his confession. The Eighth Court of Appeals disagreed—essentially concluding that "presence" in the statute means "constructive" presence or "line of sight." But the Court of Appeals analysis missed the mark by not viewing the statute as a whole. This presents an issue of first impression for this Court.

There is no direct guidance in the caselaw as to how "presence" should be construed here. However, in other criminal contexts, some Texas courts interpret "presence" to encompass both physical and sensory proximity, while in others, courts have construed "presence" to mean constructive presence rather than requiring actual eye or ear witness of

[7] R.R. Vol. III at 104:15.

[8] *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL 2146682, at *10 (Tex. App.—El Paso 2025, pet. filed).

court so found, and this Court should too.

That's all that happened here. To conclude otherwise was error.

ARGUMENT

A. The Magistrate Provided a Neutral Examination of F.M.V.'s Statement Outside the Physical Presence of Law Enforcement.

The purpose of the procedures in Family Code Section 51.095 is to ensure that a magistrate's examination of a child is "independent" of any law enforcement officer or prosecuting attorney. *See* Tex. Fam. Code § 51.095(D) (requiring that the magistrate certify that her examination of the child was "independent" of any law enforcement officer or prosecuting attorney). The trial court concluded that FMV received exactly that: an independent examination by a magistrate that accepted his statement outside the "presence" of law enforcement. (C.R. 146). The Appellate court concluded otherwise because "law enforcement officers were present, some of whom were armed, without any showing that their presence was necessary for the magistrate's personal safety." *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL 2146682, at *11 (Tex. App.—El Paso July 29, 2025) (publication pending).

But not only was F.M.V. repeatedly warned of his rights after his detention, the timeline of events demonstrates that both the Officers and the Magistrate strictly complied with all the requirements of § 51.095.

12:08 pm: F.M.V. was picked up from his home by Detective Bastardo.

- At 12:08 pm, Magistrate Priddy reviews F.M.V.'s statement with him outside the presence of law enforcement and F.M.V. makes changes to his statement.

3:30 pm: F.M.V. was taken to the Juvenile Probation Office to be processed

- Detective Bastardo testified that F.M.V. was transported back to the Juvenile Probation Department around 3:30 to 3:37 pm. (R.R. Vol. 1 at 61: 4-5).

B. Constructing "presence" under § 51.095 of the Family Code to mean "line of sight", rather than "physical presence" creates new law that should be reviewed.

There is a balance of purposes in the statute Children are provided added protections to ensure their legal rights are recognized and enforced, but at the same time the welfare of the community is protected by allowing juveniles to make custodial statements.

Under Texas Family Code § 51.095, a child's statement is admissible in evidence if the child received warnings from a Magistrate prior to making the statement, and the child signed the statement in the presence of a magistrate judge with no law enforcement officer or prosecuting attorney "present." Tex. Fam. Code § 51.095(1), (1)(B)(i). But the statute does not squarely define law enforcement "presence," and this Court has not yet taken up the issue. It should do so now.

Here, the Eighth Court of Appeals held that "the definition of the term "present" as being "in view" comports with a reading of §51.095 as a whole and its purpose." *In re F.M.V.*, 2025 WL 2146682 at *12. However, the court analyzed the application of that definition in only one of five uses of the words present or "presence" in the statute. The Court of Appeals held that the police were "present,"

1 As to criminal proceedings, most Texas courts interpret "presence" to encompass both physical and sensory proximity.

Family Code has never been addressed by this Court. The Appellate Court's holding that officers may not be in the "line of sight" or in visual range of a Juvenile when the magistrate is reviewing a juvenile statement conflicts with a common-sense reading of the statute as a whole. Moreover, the constructive presence definition of "in line of sight" does not make sense when applied to each usage of the word in the statute—including the other four uses of present or "presence." Lastly, the purpose of the Family Code is not a rigid separation of the magistrate, juvenile, and officers, but rather to ensure that a fair interview with the magistrate took place. It does not require a removal from the officer's custody.

In criminal contexts such as proceedings or sentencing, Texas courts have found "presence" to mean close physical proximity – within reach of the senses of sight and sound. Yet, here, the Eighth Court of Appeals concluded that "presence" in Family Code §51.095 means "in line of sight." *In re F.M.V.*, 2025 WL 2146682 at *12. This holding does not square with existing caselaw in criminal matters.

CONCLUSION AND PRAYER

There was understandable error below. This Court has never had the opportunity to address the meaning of "presence" in this section of the Family Code.

CONCLUSION AND PRAYER

But the Court should do so now. "Presence" should not be read in isolation to mean "line of site" or "constructive" presence. That reading does harm to the other three uses of "presence" in the statute. The trial court agreed: the juvenile was examined by the magistrate independently of the law enforcement officers 30 feet down the block. Yet the Court of Appeals failed to read the statute as a whole and consider its definition in light of the other four uses of "presence." For all these reasons, Petitioner State of Texas prays that this court grant this Petition for Review, and after full briefing and oral argument, reverse and render judgment in favor of the State and affirm the judgment of the trial court.

There was understandable error below. This Court has never had the opportunity to address the meaning of "presence" in this section of the Family Code.

But the Court should do so now. "Presence" should not be read in isolation to mean "line of site" or "constructive" presence. That reading does harm to the other three uses of "presence" in the statute. The trial court agreed: the juvenile was examined by the magistrate independently of the law enforcement officers 30 feet down the block. Yet the Court of Appeals failed to read the statute as a whole and consider its definition in light of the other four uses of "presence." For all these reasons, Petitioner State of Texas prays that this court **grant** this Petition for Review, and after full briefing and oral argument, **reverse and render** judgment in favor of the

State and **affirm** the judgment of the trial court.

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing document was sent to the attorney for the Appellant, Kelli Childress, 500 E. San Antonio, Room 501, El Paso, Texas 79901 via electronic mail at ReVargas@epcounty.com, on this 10th day of October 2025.

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing document was sent to the attorney for the Appellant, Kelli Childress, 500 E. San Antonio, Room 501, El Paso, Texas 79901 via electronic mail at ReVargas@epcounty.com , on this 10th day of October 2025.

/s/ Amanda Frizzelle
Amanda Frizzelle

CERTIFICATE OF COMPLIANCE

Pursuant to the Texas Rule of Appellate Procedure 9.4(i)(1), (3), I hereby certify that this Appellate Brief contains 4,358 words. This is a computer-generated document created in Microsoft word, using 14-point typeface for all text and 12-point footnotes. In making this certificate, I am relying on the word count provided by the software used to prepare this document.

CERTIFICATE OF COMPLIANCE

certify that this Appellate Brief contains 1,773 words. This is a computer-generated document using 14-point typeface for all text and 12-point footnotes.

/s/ Amanda Frizzelle
Amanda Frizzelle

APPENDIX

1. F.M.V. Court of Appeals Brief
2. May 2, 2025 Notice from 8th Court of Appeals: Case set for submission without oral argument
3. Trial Court Judgment
4. 8th Court of Appeals Opinion
5. Rules and Statutes Cited